JACKSON MUREHWA
and
RICHARD CHIWANDIRE
versus
MAGISTRATE RAKAFA-MATSIKA N.O.
and
PROSECUTOR GENERAL

HIGH COURT OF ZIMBABWE
MANDAZA J
HARARE 19 June 2026 and 3 July 2026.

Application for review

C Mhike, for the 1st applicant
D PDrury, for the 2nd applicant
No appearance for the 1st respondent
T. Mapfuwa, for the 2nd respondent

MANDAZA J: This is an application for review brought in terms of Rule 62 of the High Court Rules, 2021, as read with sections 26 and 27 of the High Court Act [*Chapter 7:06*]. The relief sought is that the order of the first respondent dismissing the applicants' application for discharge at the close of the State's case in case number CRB HRE PN 3201-2/24 be set aside, and that the applicants be accordingly acquitted and discharged. The application is opposed.

The brief facts are these: The applicants are before the magistrates' court charged with two counts: Count 1 *Forgery*, as defined in section 137 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]; and Count 2 *Fraud*, as defined in section 136 of the same Act.

It is alleged under Count 1 that the accused forged a letter dated 6 February 2020, making it appear to have been authored by the then Permanent Secretary of the Ministry of Mines, *Prof. Gudyangat*. The second count pertains to *fraud,* and it arises from the same facts. The allegations are that the accused presented the forged document with the intention of defrauding the ministry.

The accused persons pleaded not guilty to the charges, and the matter proceeded to trial. The State led evidence from four witnesses, namely: Angeline Munyeza, Professor F. Gudyanga, Sergeant Solomon Kanyoka, and Pfungwa Kunana. Upon conclusion of the State's case, the defence invoked section 198(3) of the *Criminal Procedure and Evidence Act* [*Chapter 9:07*]. The said section reads as follows:

> "If, at the close of the case for the prosecution, the court considers that there is no evidence that the accused committed the offence charged in the indictment, summons or charge, or any other offence of which he might be convicted thereon, it shall return a verdict of not guilty."

The first applicant submitted, *inter-alia*, that the State had failed to establish the *actus reus, mens rea,* and the essential elements of forgery and fraud. It was contended that, in the absence of proof of these elements, the first respondent ought to have discharged and acquitted him. Counsel emphasised that, having elected to exclude the evidence of the forensic examiner from the State's case, the prosecution was left without any scientifically backed evidence upon which a conviction could reasonably be sustained. It was further argued that Exhibit 1, being a photocopy of poor quality, was incapable of supporting a conviction. In sum, the elements of the offences charged were not proven, and the applicant prayed that the magistrate's ruling be set aside and that a discharge be granted.

The second applicant also addressed the Court at length. He submitted that it is a time-honoured principle that a superior court will only exercise its discretion to interfere with unterminated proceedings where it is demonstrated that a gross irregularity has occurred, or that an injustice may result if intervention is withheld. In support of this proposition, the Court was referred to a line of authorities, including *Khumalo* v *The Presiding Magistrate N.O. and Another* HB 345/16.

It was further submitted that the *actus reus* and *mens rea* for both forgery and fraud were not established against the applicants. The magistrate's refusal to discharge them was said to constitute a misdirection, gross unreasonableness, and bias. Counsel argued that an accused should not be placed on his defence where an essential element of the crime has not been proved, and that the State is not permitted to embark upon a "fishing expedition" in the hope that the accused might, in his defence, supply the evidential gaps left by the prosecution. It was contended that Exhibit 1, being a photocopy of poor quality, offends the best evidence rule governing the production of documentary exhibits. On this basis, the second applicant prayed for discharge at the close of the State's case.

The second respondent opposed the application. It submitted that superior courts ought to allow trials to run their full course without interference, and that review powers must be exercised sparingly. The Court was referred to a line of authorities, including *Masedza and Others* v *Magistrate Rusape and Others* 1998 (1) ZLR 36 (H) and *S* v *Rose* 2012 (1) ZLR 238 (H), in support of the principle that intervention in unterminated proceedings is permissible only where actual and permanent prejudice will be occasioned to the accused, and where no adequate remedies would be available if the trial were allowed to proceed to conclusion.

It was further submitted that the application for discharge was dismissed on the basis that the state had established a *prima facie* case warranting the applicants to be put on their defence. The duty of the state is to prove a *prima facie* case at the close of the state's case and not a case beyond a reasonable doubt. For that proposition, the court was referred to the case of *S* v *Nyarugwe* HH42/15, where the court held that:

> "A *prima facie* case is where one can say there has been shown, on the evidence led, a probable cause to put the accused on his defence…At this stage, the test is not whether there is proof beyond a reasonable doubt…."

In *casu*, the State further submitted that the applicants ought properly to be put to their defence, so as to explain the provenance of the impugned document, the manner in which it was obtained, and the intention underlying its production at the meeting of 6 February 2020. On the issue of the photocopied document, the State emphasised that the first applicant was the one who presented a photocopy of that document at the said meeting. Finally, the State contended that the magistrate had properly exercised her discretion in dismissing the application for discharge, and prayed that the present application be dismissed.

The law governing unterminated proceedings is settled in this jurisdiction. There exists a consistent line of authority in which the courts have expressed reluctance to intervene, whether by way of review or by an order staying proceedings, in uncomplicated matters before a lower court or tribunal. The guiding principles are well established: intervention is reserved for instances of gross irregularity or where irreparable prejudice would otherwise result. See, for example, *Bvunzawabaya and Others* v *Commissioner of Prisons and Another* 2008 (1) ZLR 108 (H), and *Mashonganyika* v *Lena NO and Another* 2001 (2) ZLR 103 (H).

What is clear from the many cases in point is that the intervention by a superior court in the uncompleted proceedings of a lower court should be entertained only in exceptional circumstances. See *Attorney-General* v *Makamba* 05-SC-030. In that case, the court stated as follows:

> "The application was upheld by the learned judge who presided over the matter. He found justification for the unusual course of interfering in an uncompleted trial in the following passage from *Criminal Procedure in Zimbabwe* by John Reid-Rowland…" (My emphasis).

In that case, a Judge of the High Court acquitted the accused on all charges and ordered his release from remand prison, where he had been detained pending completion of his trial. The Supreme Court described the procedure of interfering with unterminated proceedings as "… an unusual course."

It is trite that the High Court's statutory powers of review may be exercised at any stage of criminal proceedings before an inferior court. In proceedings that are not yet completed, such powers must be invoked sparingly. Intervention is appropriate only in those rare instances where grave injustice might result, or justice might not otherwise be obtained. For example, where a grave irregularity or impropriety has occurred in the proceedings, it would be proper for the High Court to consider the matter. Generally, however, it is preferable to allow proceedings to run their normal course, with redress sought by way of appeal or review thereafter. This principle is articulated in *Criminal Procedure in Zimbabwe* by John Reid-Rowland at 26-11.

The applicants submitted that the learned magistrate's failure to discharge them at the close of the State case constituted a gross irregularity warranting this Court's interference. I take the view, however, that the magistrate made findings of fact upon which the decision not to discharge was based. It has been held that a magistrate's refusal to discharge an accused person at the close of the prosecution's case, where such refusal rests on findings of fact, does not amount to a gross irregularity entitling the High Court to interfere with uncompleted proceedings on review.

The magistrate, in her ruling, stated, after referring to sections 136 and 137 of the *Criminal Law (Codification and Reform) Act* [*Chapter 9:23*], which forms the basis of the charges the applicants are facing, that:

> "From the evidence led by the four state witnesses, the state has proved on a *prima facie* basis that the document in question was not authored by Professor Gudyanga. It has also been proved on a *prima facie* basis that there is no file copy in the file that is kept at the Ministry of Mines. It has also been proved on a *prima facie* basis that it was the first accused who

> delivered or produced the letter on 6 February 2020, and the second accused is the one who handed him the document with other company documents…It is the court's well-considered view that the two accused persons have a case to answer. The state has managed to prove a *prima facie* case against the two accused"

The magistrate's findings of fact cannot be faulted. The basic facts that are common cause or undisputed clearly warranted placing the applicants on their defence. The issues identified by the magistrate called for an explanation from the applicants and, in my view, did not amount to an impermissible shift of the onus onto them to prove their innocence.

The applicants contended that no case had been proved against them at the close of the State's case and that they ought to have been discharged. I hold a different view. At the close of the prosecution's case, the State need only establish a *prima facie* case, as the magistrate correctly observed. The standard at that stage is not proof beyond a reasonable doubt. As G. Feltoe notes in the *Magistrates' Handbook* at p. 94: *"Proof beyond a reasonable doubt does not mean proof to an absolute degree of certainty. It means a high degree of certainty."* See also *S* v *Makanyanga* 1996 (2) ZLR 231.

The magistrate reasoned that the State had established a *prima facie* case implicating the applicants. It was held in *S* v *Nyarugwe* (supra) that a *prima facie* case exists where, on the evidence led, there is probable cause to put the accused on his defence. At that stage, the test is not whether the prosecution has proved its case beyond a reasonable doubt. Had the magistrate erroneously stated that the State had proved its case beyond a reasonable doubt, that would have justified this Court's intervention. However, she was alive to the correct position in law: that at the close of the State's case, the requirement is only to establish a *prima facie* case.

It is also material to note that Professor Gudyanga testified under oath that he had no knowledge of the letter purporting to bear his "signature," and that he never signed his name as "Prof. Gudyanga." The letter in question is the only document bearing the unusual signed-off initials "Prof. P. Gudyanga." Pfungwa Kunaka, the Permanent Secretary, likewise testified under oath that the letter did not appear to have originated from the Ministry, as no file copy existed in the Ministry's records. He further stated that the committee before which the letter was produced was shocked by its existence. Such evidence could not properly be ignored by the magistrate.

I hold that the magistrate's decision to put the accused to their defence was correct in the circumstances. It is trite that once the essential elements of an offence are *prima facie*

established, an accused is not entitled to a discharge. From the evidence led by the State, a misrepresentation was made to the dispute committee with the intention to deceive. Prejudice was occasioned when the applicants commenced mining, thereby satisfying the essential elements of the offence of fraud. Under our law, the delivery or causing of a forged document to be delivered may constitute a competent charge of fraud.

In conclusion, it is not sufficient merely to show that the decision *a quo* was wrong, or that there was an irregularity, or that the accused suffered prejudice, for all such matters can be corrected on appeal. Even if the accused is wrongly convicted or acquitted, any resultant miscarriage of justice may be redressed on appeal. It is trite from the case law cited above that the circumstances under which this Court may properly interfere with uncompleted proceedings pending in the lower court are very rare indeed. Put differently, such instances must be uncommon and demonstrably exceptional.

The above position was emphatically put by MATHONSI J (as he then was) in the matter of *Masinga. I* v *Sande MS and the Acting Prosecutor General* (19-HH-372) in the following terms:

> "There are policy considerations behind the approach of not interfering with unterminated proceedings. Magistrates have jurisdiction to try criminal offenders and to pronounce judgements on the guilt or otherwise of those that are arraigned before them for criminal prosecution. While this court has jurisdiction to supervise magistrates courts in terms of s171 (1)(b) of the Constitution, it is undesirable to disturb proceedings before they are completed because it upsets good order and the smooth operations of the courts. Apart from that, it is not like an accused person who is aggrieved by an adverse interlocutory decision does not have recourse. He or she can bid time and challenge the decision by way of appeal."

In the case of *Dombodzvuku and Anor* v *Sithole NO and Anor* 2004 (1) ZLR 242 (H), the court held as follows:

> "… An incorrect interpretation of the law cannot be grossly unreasonable merely because it does not find favour with its attacker. The person attacking the decision must go further and show that, on the facts before the court, the decision defies logic and is completely wrong. A different opinion of the law, clearly showing how it was arrived at, cannot be said to defy logic. It may be wrong, but it may not necessarily be unreasonable"

As highlighted above, there is no irreparable prejudice which would be occasioned to the applicants by the refusal to intervene in the magistrate's court proceedings at this stage. The applicants still have the remedy of appealing against any judgment of the magistrate if there are grounds to challenge it.

In the case of *Kembo M and Ors* v *Ms Mazhande NO and the State* 18-HH-162, the court sounded the following warning:

> "Litigants must realise that the mere filing of an application for the review of a decision of the Magistrate in an application for discharge at the close of the case for the prosecution does not constitute a special circumstance warranting intervention in unterminated proceedings, especially if the review application seeks to challenge factual conclusions. Only serious matters, such as the apparent lack of jurisdiction of the lower court would justify the intervention, otherwise the administration of justice would be jeopardised by unnecessary interference by the superior courts in the unterminated proceedings of the lower tribunals."

I associate myself with the above sentiments. The due administration of justice would be severely undermined if superior courts were to unduly interfere with unterminated proceedings in the lower courts. Trials in those courts must be permitted to run their full course, with interference being the exception rather than the rule.

In the present circumstances, there are no grounds to justify the relief sought. The trial has not yet been concluded. The decision now impugned may ultimately prove inconsequential should the applicants be acquitted. Even in the event of conviction, the applicants retain the right to appeal the verdict. The proper course, therefore, is to allow the proceedings to reach their natural conclusion, with any alleged irregularities or misdirections addressed through the ordinary appellate process.

Before leaving this judgment, I wish to comment on the draft order filed off record. Paragraph 2 of the draft order is couched as follows:

"Accordingly, the first Applicant and the second Applicant are acquitted and discharged."

My understanding of the law is that, even if this Court were satisfied that there was no evidence upon which a reasonable court could convict, the proper order is one of discharge, not acquittal. Section 198(3) of the *Criminal Procedure and Evidence Act* [*Chapter 9:07*] empowers the court to discharge an accused at the close of the State's case; it does not authorise the entry of a verdict of not guilty. A verdict of acquittal may only be returned at the conclusion of a full trial.

The consequences of an acquittal are final and far-reaching: the accused cannot be tried again on the same facts and charge, as the verdict establishes innocence after a thorough judicial inquiry. By contrast, an order of discharge signifies only that no *prima facie* evidence has been adduced to justify placing the accused on his defence. It is not a definitive

pronouncement of innocence, but rather a procedural safeguard against unwarranted continuation of proceedings where the State has failed to establish the essential elements of the offence.

The application be and is hereby dismissed.

MANDAZA J: ……..

Atherstone and Cook, first applicant's legal practitioners
Gallop and Blank, second applicant's legal practitioners
The Prosecutor General's office, second respondent's legal practitioners